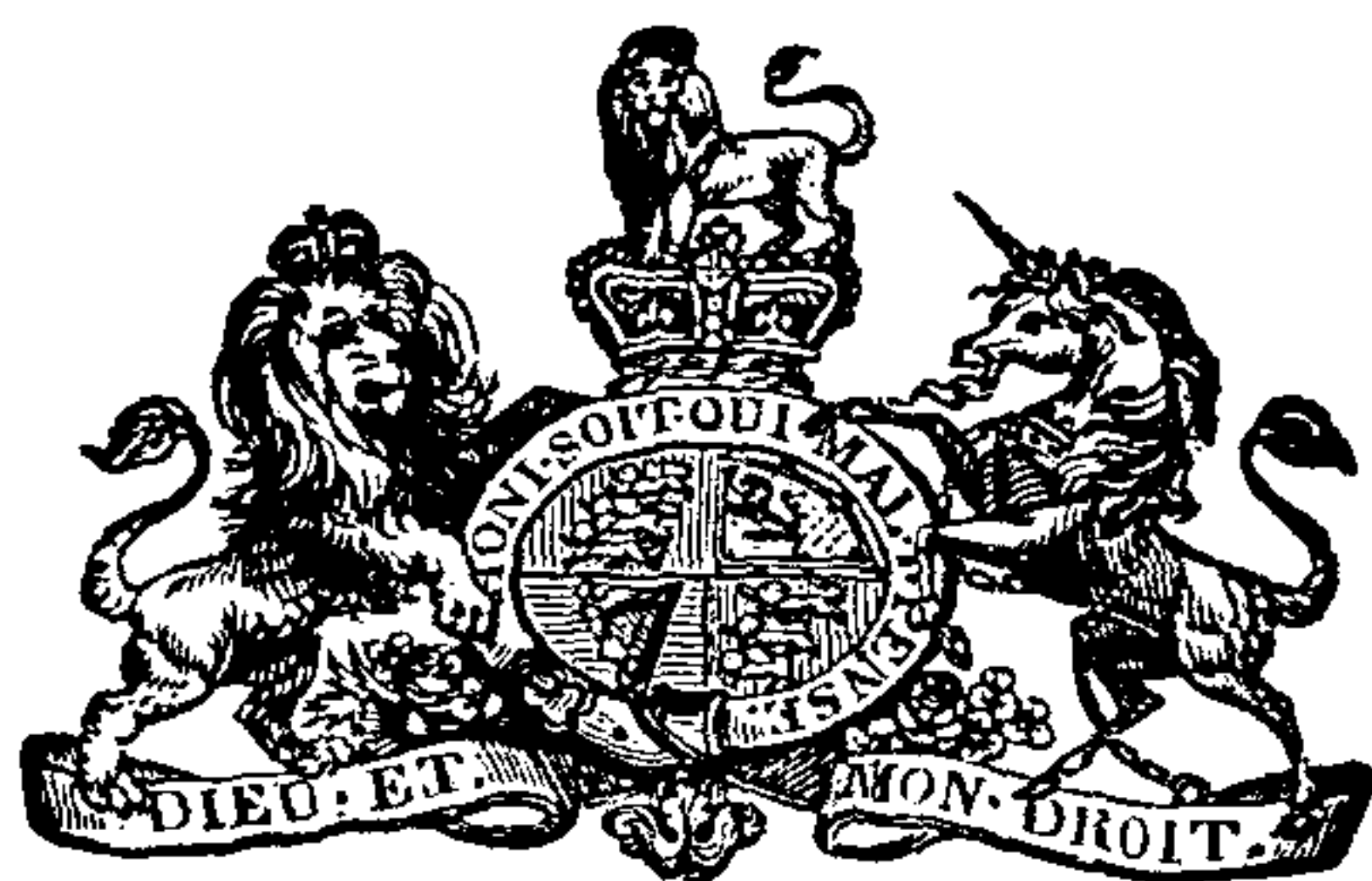




CHAPTER cxcvi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to the Birmingham Tame and Rea Main Sewerage District and to Leeds and Wolverhampton. A.D. 1900.
[6th August 1900.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provision herein contained should be enacted with reference to one of such Orders :

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The Urban Sanitary Authority of the City of Leeds shall not under the provisions of the Leeds Order 1900 hereby confirmed purchase or acquire either compulsorily or by agreement ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Special provision relating to the Leeds Order as to houses of labouring class.

For the purposes of this section the expression "labouring class" includes mechanics artisans labourers and others working

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A.D. 1900. for wages hawkers costermongers persons not working for wages
— but working at some trade or handicraft without employing others
 except members of their own family and persons other than
 domestic servants whose income does not exceed an average of
 thirty shillings a week and the families of any of such persons
 who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board's
 Provisional Orders Confirmation (No. 15) Act 1900.

SCHEDULE.

A.D. 1900.

**BIRMINGHAM TAME AND REA MAIN SEWERAGE
DISTRICT.**

*Birmingham
Tame and
Rea Order.*

*Provisional Order for partially repealing and altering certain
Confirming Acts.*

- To the Birmingham Tame and Rea District Drainage Board ; —
- To the Mayor Aldermen and Citizens of the City of Birmingham ; —
- To the Mayor Aldermen and Burgesses of the Borough of Smethwick ; —
- To the Mayor Aldermen and Burgesses of the Borough of Sutton Coldfield ; —
- To the Urban District Council of Aston Manor ; —
- To the Urban District Council of Erdington ; —
- To the Urban District Council of Handsworth ; —
- To the Urban District Council of King's Norton and Northfield ; —
- To the Urban District Council of Perry Barr ; —
- To the Rural District Council of Castle Bromwich ; —
- And to all others whom it may concern.

WHEREAS by virtue of—

- (a.) The Birmingham Tame and Rea Main Sewerage Order 1877 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Joint Boards) Act 1877 (which Order and Act are herein-after respectively referred to as "the Order of 1877" and "the Confirming Act of 1877") ; 40 & 41 Vict.
c. cccxix.
- (b.) Section 2 of the Confirming Act of 1877 ;
- (c.) The Birmingham Tame and Rea Main Sewerage Order 1881 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Birmingham Tame and Rea &c.) Act 1881 (which Order and Act are herein-after respectively referred to as "the Order of 1881" and "the Confirming Act of 1881") ; 44 & 45 Vict.
c. cii.
- (d.) Section 2 of the Confirming Act of 1881 ;
- (e.) An Order of the Local Government Board dated the Nineteenth day of March One thousand eight hundred and eighty-six and made in pursuance of Article XVIII. of the Order of 1877 ;
- (f.) The City of Birmingham Order 1891 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 13) Act 1891 ; 54 & 55 Vict.
c. clxi.
- (g.) The Warwick and Birmingham (Aston) Confirmation Order 1894 ;
- (h.) The Stafford Worcester and West Bromwich (Oldbury and Perry Barr) Confirmation Order 1894 ;

A.D. 1900.

*Birmingham
Tame and
Rea Order.*
59 & 60 Vict.
c. cvii.

[Ch. cxcvi.] *Local Government Board's* [63 & 64 Vict.]
Provisional Orders Confirmation (No. 15) Act, 1900.

- (i.) The Birmingham Tame and Rea Main Sewerage Order 1896 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1896 (which Order and Act are herein-after referred to as "the Order of 1896" and "the Confirming Act of 1896") ;
- (j.) The County of Worcester (King's Norton and Northfield Urban District) Confirmation Order 1898 ; and
- (k.) A Royal Charter of Incorporation by which the Urban District of Smethwick was created as from the Ninth day of November One thousand eight hundred and ninety-nine a municipal borough by the name of the Borough of Smethwick ;

the City of Birmingham the Boroughs of Smethwick and Sutton Coldfield the Urban Districts of Aston Manor Erdington Handsworth and Perry Barr the part of the Urban District of King's Norton and Northfield which comprises the area described in paragraph (b) of Section 2 of the Confirming Act of 1877 as the King's Norton Special Sewerage District and the part of the Rural District of Castle Bromwich which comprises the contributory places of Castle Bromwich and Water Orton now constitute the United District called the Birmingham Tame and Rea Main Sewerage District (herein-after referred to as "the United District") of which the governing body is the Birmingham Tame and Rea District Drainage Board (herein-after referred to as "the Joint Board") ;

And whereas it has been agreed that a further portion of the Urban District of King's Norton and Northfield be included in the United District and it is expedient that the basis of contribution by the Urban District of Perry Barr towards the expenses of the Joint Board mentioned in Article XXIII. of the Order of 1877 be altered and that Article XIV. of the Order of 1896 be altered in manner hereafter appearing :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Confirming Acts of 1877 1881 and 1896 so far as they respectively relate to the Orders of 1877 1881 and 1896 shall be partially repealed and altered so as to provide as follows:—

Art. I.—(1.) Paragraphs (a) (b) (c) and (e) of Section 2 of the Confirming Act of 1877 shall be wholly repealed except so far as the same may have been acted upon.

(2.) The part of the Urban District of King's Norton and Northfield included in the United District shall be extended so as to comprise the area coloured blue on the map marked A and sealed with the official seal of the Local Government Board and deposited in their office (copies whereof sealed in like manner are deposited in the offices of the Joint Board the Town Clerk of Birmingham and the Urban District Council of King's Norton and Northfield) and that area shall be called the King's Norton and Northfield Special Sewerage District and is herein-after referred to as "the Special Sewerage District."

(3.) The expressions "Constituent District" or "Constituent Districts" and "Constituent Authority" or "Constituent Authorities" shall be deemed to

[63 & 64 VICT.] *Local Government Board's* [Ch. cxcvi.]
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include the Special Sewerage District the Borough of Smethwick the Urban District Council of King's Norton and Northfield and the Mayor Aldermen and Burgesses of the Borough of Smethwick acting by the council (herein-after referred to as "the Smethwick Corporation") as the case may be.

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Birmingham
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(4.) Schedules A and B to this Order shall be substituted for the Schedules A and B to the Order of 1896.

(5.) The King's Norton and Northfield Urban District Council shall have the permanent right to use the intercepting sewers of the Mayor Aldermen and Citizens of the City of Birmingham (herein-after referred to as "the Birmingham Corporation") for the conveyance from the Special Sewerage District to the outfall works of sewage at a rate of discharge not exceeding one hundred gallons per head per day of the population of the Special Sewerage District calculated and ascertained and upon and subject to the terms and conditions which have been or may be from time to time agreed upon between the Birmingham Corporation the Joint Board and the King's Norton and Northfield Urban District Council or failing agreement as may be determined by arbitrators one to be appointed by each party or an umpire to be appointed by such arbitrators in case of disagreement and the provisions of the Arbitration Act 1889 and any Act amending that Act shall apply to such arbitration.

(6.) The contributions of the Rural District Council of Castle Bromwich to the common fund out of which the expenses of the joint board are in pursuance of Article XXIII. of the Order of 1877 defrayed shall be contributed and raised in the same manner in every respect as if such contributions were required to defray "special expenses" within the meaning of the Public Health Act 1875.

Art. II.—(1.) The contribution of the Urban District of Perry Barr to the common fund out of which the expenses of the Joint Board are in pursuance of Article XXIII. of the Order of 1877 defrayed shall be calculated in proportion to the number of rated tenements in the parts of the said Urban District which are coloured brown on the map marked B and sealed with the official seal of the Local Government Board and deposited in their office (copies whereof sealed in like manner are deposited in the office of the clerk to the Joint Board and in the office of the clerk to the Urban District Council of Perry Barr) and such contribution shall be made by the said Urban District Council accordingly and not in proportion to the number of rated tenements in the whole of the said Urban District.

(2.) Nothing in this Article shall take away lessen or prejudicially affect the right of the Urban District Council of Perry Barr to drain any other part of the said Urban District to the outfall works of the Joint Board but if at any time hereafter the said Urban District Council shall desire to so drain any such part in addition to the parts referred to in subdivision (1) of this Article such additional part may be so drained to the outfall works of the Joint Board upon such terms and conditions as may be agreed upon between the said Urban District Council and the Joint Board or failing agreement as may be determined by arbitration in accordance with the provisions of the Arbitration Act 1889 or any Act amending that Act.

(3.) When such additional part shall have been so determined upon the said Urban District Council shall deposit at the office of the Local Government Board and at the office of the clerk to the Joint Board and at their office amended copies of the maps marked B showing the area coloured brown on the maps

[Ch. cxcvi.] *Local Government Board's* [63 & 64 VICT.]
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A.D. 1900. *Birmingham Tame and Rea Order.* marked B and the additional part of their district to be so drained and such amended maps shall be deemed to be substituted for the maps marked B and the provisions of this Article shall be deemed to apply to the additional area shown on the amended maps as well as to the area coloured brown on the maps marked B.

Art. III. Article XIV. of the Order of 1896 shall be altered so as to empower the Joint Board to agree to allow the sewers of the Rural District Council of Castle Bromwich in the Hamlet of Minworth and the Parish of Curdworth to communicate with the sewers vested in or under the control of the Joint Board as if such Rural District Council were the Council of a County District other than one of the Constituent Districts of the Joint Board.

Art. IV. This Order may be cited as the Birmingham Tame and Rea Main Sewerage Order 1900 and the Birmingham Tame and Rea Main Sewerage Orders 1877 to 1896 and this Order may be cited together as the Birmingham Tame and Rea Main Sewerage Orders 1877 to 1900.

The SCHEDULES above referred to.

SCHEDULE A.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The City of Birmingham -	The Mayor Aldermen and Citizens of the City of Birmingham acting by the Council.	1	The Mayor -	13
The Borough of Smethwick -	The Mayor Aldermen and Burgesses of the Borough of Smethwick acting by the Council.	—	- - -	1
The Borough of Sutton Coldfield.	The Mayor Aldermen and Burgesses of the Borough of Sutton Coldfield acting by the Council.	—	- - -	1
The Urban District of Aston Manor.	The Urban District Council of Aston Manor.	1	The Chairman of the District Council.	1
The Urban District of Erdington.	The Urban District Council of Erdington.	—	- - -	1
The Urban District of Handsworth.	The Urban District Council of Handsworth.	—	- - -	1
The Special Sewerage District.	The Urban District Council of King's Norton and Northfield.	—	- - -	1
The Urban District of Perry Barr.	The Urban District Council of Perry Barr.	—	- - -	1

SCHEDULE B.

A.D. 1900.

*Birmingham
Tame and
Rea Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Rural District of Castle Bromwich Contributory places of Castle Bromwich and Water Orton.	The Rural District Council of Castle Bromwich.	—	- - -	1

Given under the Seal of Office of the Local Government Board this
Nineteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

CITY OF LEEDS.

*Leeds
Order.*

*Provisional Order to enable the Urban Sanitary Authority for
the City of Leeds to put in force the Compulsory Clauses
of the Lands Clauses Acts.*

To the Lord Mayor Aldermen and Citizens of the City of Leeds ; —
And to all others whom it may concern.

WHEREAS the Lord Mayor Aldermen and Citizens of the City of Leeds acting by the council (herein-after referred to as “the Corporation”) as the Urban Sanitary Authority for that city require to purchase and take the lands situate in the city and described in the schedule hereto for the following purposes viz,—

1. The lands described in Part I. of the said schedule for the purpose of widening enlarging or otherwise improving Cookridge Street ;
2. The lands described in Part II. of the said schedule for making a new street from Lands Lane to Briggate :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz,—

38 & 39 Vict.
c. 55.

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Leeds Order 1900.

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Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900.
—
Leeds.
Order.

The SCHEDULE above referred to.

City of LEEDS.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
PART I.				
8	Yard and outbuildings.	Frederick Conyers Kitchin.	Thomas Gordon James Morrison William Walter Eastwood.	Thomas Gordon James Morrison William Walter Eastwood William Teal Frederick Conyers Kitchin.
10	Office and dwelling-house.	ditto - -	- - -	William Teal.
11	Stables coach-house saddle-room and manure pit.	William Teal - -	- - -	ditto.
12	Stables coach-house saddle room manure pit and store-rooms.	Frederick Conyers Kitchin.	- - -	ditto.
15	Public highway gas water and electric mains pipes and sewers telegraph and telephone wires (Guildford Street).	The Corporation the Postmaster-General the National Telephone Company Limited.	- - -	The Corporation the Postmaster - General the National Telephone Company Limited.
16	Saint Anne's Roman Catholic school yards steps and outbuildings.	The Right Reverend William Gordon D.D. the Right Reverend Arthur Riddell D.D. the Very Reverend Edward Watson.	- - -	The Reverend Charles Croskell the Reverend Daniel Murphy the Reverend Norman Warr the Reverend Thomas Shine.
17	Passage - -	ditto - -	- - -	ditto.
18	Yard archway steps and watercloset.	ditto - -	- - -	ditto.
19	Saint Anne's Roman Catholic Cathedral and yards.	ditto - -	- - -	ditto.
20	Presbytery dwelling-house and garden.	ditto - -	- - -	ditto.
21	Dwelling-house and coal stores.	ditto - -	- - -	ditto.
22	Saint Anne's Roman Catholic schools yard and outbuildings.	The Very Reverend Edward Watson the Very Reverend James Watson Gordon the Reverend Joseph Robert Cowgill the Reverend Alfred Galli the Reverend John Hewison.	- - -	ditto.
23	Public highway gas water and electric mains pipes and sewers electric tramway rails posts and wires and telegraph and telephone wires (Cookridge Street).	The Corporation the Postmaster-General the National Telephone Company.	- - -	The Corporation the Postmaster - General the National Telephone Company.

[63 & 64 VICT.]

Local Government Board's

[Ch. cxcvi.]

Provisional Orders Confirmation (No. 15) Act, 1900.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
24	Public highway gas water and electric mains pipes and sewers and telegraph and telephone wires (Saint Anne's Street).	The Corporation the Postmaster-General the National Telephone Company.	- - -	The Corporation the Postmaster - General the National Telephone Company.
27	Warehouse - -	Alexander Monteith -	- " -	James Smith.
28	Yard waterclosets outbuildings and manure pit.	ditto - -	- - -	Benjamin Smith Thomas Bowman Ellen Morley William Clayton Solomon Moses Alexander Monteith James Smith.
29	Stables and store-room	ditto - -	- - -	Benjamin Smith.
30	Workshop - -	ditto - -	- - -	Thomas Bowman.
31	Dwelling-house -	ditto - -	- - -	Ellen Morley.
32	Workshops - -	ditto - -	- - -	William Clayton Solomon Moses.
33	Wood shed - -	ditto - -	- - -	Alexander Monteith.
34	Vacant land bill-posting hoarding and store-rooms.	The Trustees of Walter Stead deceased viz. Frank White Barr Arthur Reginald Chorley.	Sheldons Limited -	Sheldons Limited.
35	Offices - -	The Trustees of Samuel Tallantine Oates deceased viz. John William Chapman Earlesmere Joseph Grime.	ditto - -	James Cliff Pearson William Dean Pearson William Charles Roach Henry Cuthbert Briggs.
36	Offices dwelling-house yard and out-buildings.	ditto - -	ditto - -	Sheldons Limited Archibald Neild John William Hirst.
37	Vacant land - -	Sheldons Limited -	- - -	Sheldons Limited.
38	ditto - -	Harold Mark Carter Arthur Nugent Smyth.	- - -	Harold Mark Carter Arthur Nugent Smyth.
39	Proposed street -	Harold Mark Carter Arthur Nugent Smyth Leeds Masonic Hall Company Limited.	- - -	Harold Mark Carter Arthur Nugent Smyth Leeds Masonic Hall Company Limited.
41	Public highway gas water and electric mains pipes and sewers telegraph and telephone wires (Great George Street).	The Corporation the Postmaster-General the National Telephone Company Limited.	- - -	The Corporation the Postmaster - General the National Telephone Company Limited.
PART II.				
1	Store - rooms and stables.	The Trustees of William Hargraves deceased viz. Elizabeth Hargraves Helena Parker the Corporation.	- - -	Thomas Clowes Jabez Baker.

A.D. 1900.

Leeds.

Order.

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Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900.

*Leeds
Order.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
2	Workshop stables coach-house water- closets manure pit steps and open space.	The Trustees of William Hargraves deceased viz. Eliza- beth H a g r a v e s Helena Parker the Corporation.	- - -	Thomas Clowes Jabez Baker.
3	Brewhouse billiard room warehouse and steps.	ditto - -	- - -	Jabez Baker.
4	Dwelling-house -	ditto - -	- - -	ditto.
5	Public - house and premises (The W h e a t S h e a f Hotel).	ditto - -	- - -	ditto.
6	Shop - -	ditto - -	- - -	Robert Sinclair.
7	Passage and yard -	ditto - -	Charles Needham John Francis Linton Render Leonard Noblett.	Thomas Clowes Jabez Baker Robert Sinclair William Elliott John Francis Linton Render Leonard Noblett
			William Joynes Charles Needham John Henry Shearer Joseph Henry Lawton Herbert Lawton Allpass and Company Limited Thomas Scaling Charles George Mary Clarkson Robert Norfolk Harriet Farrer Arthur Tidswell Fred Brown.	
8	Shop and room over passage.	ditto - -	- - -	William Elliott.
9	Public - house and premises (The Leopard Hotel).	ditto - -	Charles Needham -	Charles Needham.
10	Brew - house malt room and steps.	ditto - -	ditto - -	ditto.
11	Passage and urinal -	ditto - -	Charles Needham John Francis Linton Render Leonard Noblett.	Jabez Baker Robert Sinclair William Elliott John Francis Linton Render Leonard Noblett William Joynes Allpass and Com- pany Limited Thomas Clowes Charles Needham Joseph Henry Law- ton Herbert Lawton John Henry Shearer Thomas Scaling
			Charles George Mary Clarkson Robert Norfolk Harriet Farrer Arthur Tidswell Fred Brown.	
12	Yard - -	ditto - -	ditto - -	ditto.
13	Stables workshops store - rooms and steps.	ditto - -	Charles Needham -	William Joynes Charles Needham Allpass and Com- pany Limited.
14	Stables and coach- house.	ditto - -	ditto - -	Charles Needham John Henry Shearer.

[63 & 64 VICT.] *Local Government Board's* [Ch. cxcvi.]
Provisional Orders Confirmation (No. 15) Act, 1900.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	A.D. 1900. <i>Leeds Order.</i>
15	Stables and coach-house.	The Trustees of William Hargraves deceased viz. Elizabeth Hargraves Helena Parker the Corporation.	- - -	Joseph Henry Lawton Herbert Lawton.	
16	Dwelling house and room over passage.	ditto - -	- - -	Thomas Scaling.	
17	Passage yard and outbuildings.	ditto - -	- - -	Thomas Scaling Charles George Mary Clarkson.	
18	Office dwelling-house and steps.	ditto - -	- - -	Charles George.	
19	Dwelling-house -	ditto - -	- - -	Mary Clarkson.	
20	ditto - -	ditto - -	- - -	Robert Norfolk.	
21	ditto - -	ditto - -	- - -	Harriet Farrer.	
22	ditto - -	ditto - -	- - -	Arthur Tidswell.	
22A	Open space - -	ditto - -	- - -	Henry Hargreaves Fred Brown Charles George Arthur Tidswell.	
23	Dwelling-house -	ditto - -	- - -	Fred Brown.	
24	ditto - -	ditto - -	- - -	Henry Hargreaves.]	
25	ditto - -	ditto - -	- - -	ditto.	
27	Vacant land - -	The Corporation.	— —	— —	
28	Watercloset and ash-pit.	Walter Longley -	- - -	Walter Longley.	
29	Yard and passage -	Walter Longley the Corporation John Smith's Tadcaster Brewery Company Limited.	- - -	Walter Longley John Deighton Lazarus Wolfson Charles Kirkness James Henry Kirkness.	
30	Wood shed - -	John Smith's Tadcaster Brewery Company Limited.	- - -	John Deighton.	
31	Ashpit coal shed waterclosets and other buildings.	ditto - -	- - -	ditto.	
32	Public - house and premises and passage (The William IV. Inn).	ditto - -	- - -	ditto.	
32A	Open space - -	John Smith's Tadcaster Brewery Company Limited the Executors of William Hargraves deceased viz. Elizabeth Hargraves Helena Parker the Corporation.	Leonard Noblett Charles Needham.	Leonard Noblett Sarah Jane Gibson Greet- ham Charles Need- ham John Deighton.	
33	Yard and passage -	Charles Kirkness -	- - -	Charles Kirkness James Henry Kirkness Lazarus Wolfson John Deighton Walter Longley.	

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Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900.

*Leeds
Order.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
34	Shop - -	The Trustees of William Hargraves deceased viz. Eliza- beth Hargraves Helena Parker the Corporation.	John Francis Linton Render.	John Francis Linton Render.
35	Shop café and part of dwelling-house.	ditto - -	Leonard Noblett Charles Needham.	Leonard Noblett Sarah Jane Gibson Greetham Charles Needham.
36	Shop and rooms over passage.	Charles Kirkness -	- - -	Charles Kirkness James Henry Kirkness.
37	Workshop stables store-rooms and office.	John Smith's Tad- caster Brewery Company Limited.	- - -	John Deighton Lazarus Wolfson Walter Longley.
37A	Open space - -	John Smith's Tad- caster Brewery Company Limited Joseph Dobson.	William Thomas Hirst Richard Edward Leach.	John Deighton Lazarus Wolfson William Thomas Hirst Richard Edward Leach.
38	Shop and office -	Walter Longley -	- - -	Walter Longley.
39	Vacant land - -	The Corporation.	—	—
40	Shop and warehouse -	Joseph Dobson -	William Thomas Hirst Richard Edward Leach.	William Thomas Hirst Richard Edward Leach.
40A	Open space - -	Joseph Dobson John Smith's Tadcaster Brewery Company Limited.	ditto - -	William Thomas Hirst Richard Edward Leach John Deighton.
41	Passage and yard -	Joseph Dobson Walter Longley the Corporation.	ditto - -	William Thomas Hirst Richard Edward Leach.
42	Passage yard and out- buildings.	The Kirkstall Brewery Company Limited Caroline Lambert Thomas Watson James Wood Wil- liam Glover the Trustees of William Bickers deceased viz. Emma Bickers Walter Longley William Bellhouse James Melville Hall Henry James Hall Richard Briggs Harrison the Trus- tees of John Proctor Calvert deceased viz. Ellen Sophia Chadwick William Chadwick Eliza Peacock Sarah Anne Coton.	Frederick Wallis Robert Jardine Lockhart Hugh Blackburn Lock- hart Hugh Craw- ford Smith Matthew Strang Smith.	James Anguish Wil- liam Henry Dobson Edward Dickenson Michael McGibbon Joseph Longbottom Louisa Jones Harry Heaps Mark Ibbotson Mann John Thomas Benn Joseph Wil- liam Bradnick Fre- derick Wallis Robert Jardine Lockhart Hugh Blackburn Lockhart Hugh Crawford Smith Matthew Strang Smith Cornelius Combridge William Sibley Thomas Wat- son James Wood Eliza Wood William Glover James Reece Bickers Edward Ralph Bickers the Trustees of John Proctor Calvert de- ceased viz. Eller Sophia Chadwick William Chadwick Eliza Peacock.

[63 & 64 VICT.] *Local Government Board's* [Ch. cxcvi.]
Provisional Orders Confirmation (No. 15) Act, 1900.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
43	Dwelling-house -	Kirkstall Brewery Company Limited.	- - -	James Anguish.
44	ditto - - -	ditto - - -	- - -	William Henry Dobson.
45	Washhouse - -	ditto - - -	- - -	William Henry Dobson Edward Dickenson Michael McGibbon James Anguish.
46	Dwelling-house -	ditto - - -	- - -	Edward Dickenson.
47	ditto - - -	ditto - - -	- - -	Michael McGibbon.
48	Office and store-room	ditto - - -	- - -	Joseph Longbottom. Louisa Jones.
49	Store-room - -	ditto - - -	- - -	Louisa Jones.
50	Workshop - - -	ditto - - -	- - -	Harry Heaps.
51	Public-house and premises and room over passage (the Pack Horse Inn).	ditto - - -	- - -	Louisa Jones.
52	Public highway gas water and electric mains pipes and sewers electric tramway rails poles and wires and telegraph and telephone wires (Briggate).	The Corporation the Postmaster-General the National Telephone Company Limited.	- - -	The Corporation the Postmaster-General the National Telephone Company Limited.
53	Public highway gas water and electric mains pipes and sewers and telegraph and telephone wires (Lands Lane).	ditto - - -	- - -	ditto.

A.D. 1900.
Leeds
Order.

Given under the Seal of Office of the Local Government Board this
Nineteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900.

BOROUGH OF WOLVERHAMPTON.

—
Wolver-
hampton
Order.

Provisional Order for altering the Wolverhampton Improvement
Act 1869.

To the Mayor Aldermen and Burgesses of the Borough of Wolverhampton ; —
And to all others whom it may concern.

32 & 33 Vict.
c. cxxxi.
59 & 60 Vict.
c. cxi.

WHEREAS the Borough of Wolverhampton (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Wolverhampton Improvement Act 1869 (herein-after referred to as "the Local Act") as altered by the Wolverhampton Order 1896 (herein-after referred to as "the Order") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 19) Act 1896 and by certain other Local Acts and Provisional Orders which were confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough ;

And whereas by Sections 48 and 49 of the Local Act provision is made with respect to the erection and maintenance of hoards ;

And whereas by Section 188 of the Local Act the Corporation are empowered to purchase or take on lease lands for the purposes of parks or places of public resort or recreation ;

And whereas by Section 193 of the Local Act the Corporation are empowered to continue and establish markets and fairs to provide places for markets and fairs and weighing houses or places for weighing or measuring articles and for weighing carts in the markets or fairs to demand and receive tolls stallages and rents and to purchase or appropriate lands for the purposes of and in connexion with markets and fairs :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect :—

Restriction on
advertising
hoardings.

Art. I. The owner of any hoarding which is in or abuts on or adjoins any street shall not cause or suffer such hoarding to be used for advertising purposes at any time when by reason of the insufficient repair or insecurity of such hoarding its use for the said purposes may be attended with danger to any person in such street.

If any person acts in contravention of this Article he shall be liable in respect of each offence to a penalty not exceeding five pounds and to a penalty not exceeding twenty shillings for each day during which any such offence is continued after conviction therefor.

Crossing for
cattle &c. over
footways.

Art. II. The provision and use of new means of access for any cattle any beast of draught or burden any waggon cart or other wheeled carriage exceeding four feet in width or two hundredweight in weight to or from any premises fronting adjoining or abutting on any street which has become a highway

repairable by the inhabitants at large may where such provision or use involves passage across or interference with any such part of the street as comprises a kerbed or paved footway be allowed subject to the following conditions that is to say,—

A.D. 1900.

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Order.

(a.) Every person who intends to provide such new means of access shall give notice in writing of such intention to the Corporation and shall at the same time submit for the approval of the Corporation a plan showing the position gradient and mode of construction of the intended means of access.

(b.) When such plan with or without amendment has been approved by the Corporation such person may upon receiving notice of such approval proceed to execute the necessary works but such works shall be executed under the supervision and to the reasonable satisfaction of the Corporation and in accordance with the said plan as approved with or without amendment by the Corporation.

(c.) After the completion of such works as aforesaid such new means of access may be used subject to the conditions which in pursuance of any provisions of the law relating to highways attach to the use for the like purpose of any carriageway forming part of a highway repairable by the inhabitants at large.

Art. III. For the purpose of providing any public urinal public lavatory or public watercloset the subsoil of any road being a highway repairable by the inhabitants at large but exclusive of any footway adjoining a building or the curtilage of a building shall be vested in the Corporation.

Provision as to
public urinal
&c.

Art. IV.—(1.) The Corporation in the case of any park or place of public resort or recreation provided by them may—

Parks or places
of public
resort.

(a) set apart any portion of such park or place for the purposes of cricket football or any other game or recreation and for the drill exercise or practice of any military or police force or of any firemen or for use for the purposes of or in connexion with concerts or other entertainments authorised by the Corporation ;

(b) provide any apparatus for games and recreation in such park or place and charge for the use of any apparatus so provided ;

c) provide chairs and seats in such park or place for the use of the public and if they think fit charge a reasonable sum for the use of chairs so provided ;

(d) provide and maintain a refreshment room in such park or place.

(2.) Any expenses incurred by the Corporation in the exercise of any power in pursuance of subdivision (1) of this Article shall be defrayed out of the fund or rate out of which the expenses of the park or place of public resort or recreation as to which such power is exercised are payable.

(3.) The provisions of Section 244 of the Local Act shall apply to any such park or place of public resort or recreation as if the said section with the necessary modifications were re-enacted in this Article and in terms made applicable to such park or place.

Provided that in the application of the said section the same shall be read as if the words “ or in the discretion of the justice before whom he is convicted to “ imprisonment for any time not exceeding fourteen days ” were omitted therefrom.

Art. V.—(1.) So much of Section 195 of the Local Act as empowers the Corporation from time to time to make byelaws for fixing the amount of the tolls stallages and rents which the Corporation will demand and receive in respect of

Additional
or substituted
market and
fair tolls.

[Ch. cxcvi.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900. markets and fairs weighing houses and places and slaughter houses shall extend and apply to the making of byelaws for fixing the amount of any such toll stallage or rent as a toll stallage or rent to be demanded and received in addition to or in substitution for any toll stallage or rent in the Seventh Schedule to the Local Act.

Wolverhampton Order.

(2.) The provisions of the Local Act with respect to tolls stallages or rents to be demanded and received in pursuance of the said provisions or of any byelaw made under the said provisions shall with the necessary modifications extend and apply to any toll stallage or rent of which the amount may be fixed by any byelaw made in pursuance of subdivision (1) of this Article.

Provision of refrigerators in connexion with markets.

Art. VI.—(1.) So much of the Local Act as empowers the Corporation to continue appoint and provide proper market-places and market-houses shall extend and apply to the provision of refrigerators or cold-air stores for the storage and preservation of marketable articles of ice-making apparatus and of such other apparatus as may be necessary for the due and proper working and regulation of the said refrigerators cold-air stores and ice-making apparatus and the provision of any such refrigerator or cold-air store shall be deemed to be a purpose to which sub-section (7) of Section 193 of the Local Act is applicable.

(2.) The Corporation may demand and take in respect of the use of any such refrigerator or cold-air store such charges as the Corporation may determine.

Borrowing powers for expenses under the Order.

Art. VII.—(1.) The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow on the security of the improvement fund and improvement rate of the Borough sums not exceeding in the whole the sum of thirty thousand pounds for the purpose of defraying any expenses under this Order which are properly chargeable to capital.

(2.) The moneys borrowed under this Article shall be repaid within such period not exceeding fifty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purpose of the Local Loans Act 1875 and for the purposes of Articles XIII. XIV. XV. and XVI. of the Order as applied by this Order.

(3.) Article XI. and Articles XIII. XIV. XV. XVI. and XVII. of the Order shall apply to any moneys borrowed under this Order as if such moneys had been borrowed in pursuance of the provisions of the Order and Article XXIII. of the Order shall apply to the costs of any local inquiry to be held with reference to the purposes of this Order.

(4.) Subject to the provisions of subdivision (5) of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(5.) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more

[63 & 64 VICT.] *Local Government Board's* [Ch. cxcvi.]
Provisional Orders Confirmation (No. 15) Act, 1900.

A.D. 1900.

mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

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hampton
Order.

Art. VIII. The provisions with respect to byelaws contained in Sections 182 to 185 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to the byelaws authorised to be made under the provisions of this Order.

General
provisions as to
byelaws.

Art. IX. Any person deeming himself aggrieved by any conviction or order made by a court of summary jurisdiction under any provisions of this Order may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

Appeal.

Art. X. Offences against the provisions of this Order or any enactment applied by this Order and penalties costs and expenses imposed or recoverable thereunder may be prosecuted and recovered in a summary manner or such costs and expenses may be recovered in any court of competent jurisdiction.

Recovery of
penalties and
expenses.

Art. XI. This Order may be cited as the Wolverhampton Order 1900.

Short title.

Given under the Seal of Office of the Local Government Board this
Twenty-first day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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